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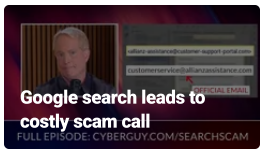

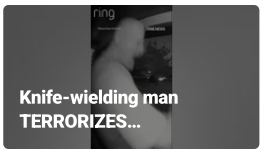

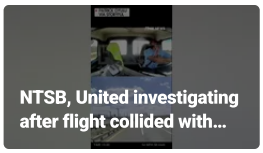

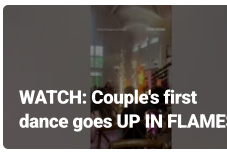

CYBERCRIME

JetBlue lawsuit raises airline pricing questions

Claims spark debate over data tracking and airfare pricing

By Kurt Knutsson, CyberGuy Report · Fox News

Published May 2, 2026 8:33am EDT

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Air travelers brace for travel snags and high prices

Travel expert Lee Abbamonte says 'prices are up across the board and hotels are out of control' on 'Your World.'

Booking a flight can feel like a guessing game. You search once, spot a decent price, come back later and suddenly it is higher. Most people shrug and assume demand changed. Now, a new lawsuit against JetBlue is challenging that idea.

The proposed class action claims the airline tracked a customer's behavior during the booking process for the purpose of setting or adjusting ticket prices.

According to the complaint, that data was collected without clear consent and may have included browsing activity and other user characteristics. The lawsuit also alleges that customers were not informed if their data was being shared or sold to third parties.

JetBlue strongly disputes the allegation. The airline says fares depend on demand and seat availability, not personal browsing behavior. Still, the case taps into a growing concern that goes far beyond one airline.

5 WORRISOME PRIVACY CLAUSES HIDDEN IN SMART HOME DEVICES

A new lawsuit against JetBlue raises questions about how airfare prices are set. (Joan Valls/Urbanandsport/NurPhoto)

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What the JetBlue lawsuit claims about pricing data

The lawsuit, filed by New York resident Andrew Phillips in federal court in New York, alleges that JetBlue monitored user activity on its website using tracking tools while he searched for flights. According to the complaint, that data was used to help adjust prices in real time.

It also claims that when a user searched for a flight, left the site and later returned to complete the booking, the fare increased. The filing suggests this may have been tied to tracking technology rather than normal pricing changes.

The complaint further alleges that this data was collected without clear disclosure and that users may not have been aware of how their information was being gathered or used.

"Consumers should not have to have their privacy rights violated to participate in the digital race for airline tickets," the lawsuit alleges.

The airline disputes these claims. In a public statement, JetBlue said it does not use personal data or browsing history to set individual prices and that all customers have access to the same fares at the same time.

CyberGuy reached out to JetBlue for additional comment but did not hear back before our deadline.

The bigger issue: surveillance pricing in airlines

The lawsuit centers on a concept called surveillance pricing. That refers to companies using personal data to adjust prices for different people. Surveillance pricing extends beyond airlines. It has become a broader concern as more companies rely on AI and advanced analytics.

In theory, two people could search for the same flight at the same time and see different prices based on factors like location, device type or browsing history. Companies rarely confirm this practice outright, but consumer advocates have raised concerns for years.

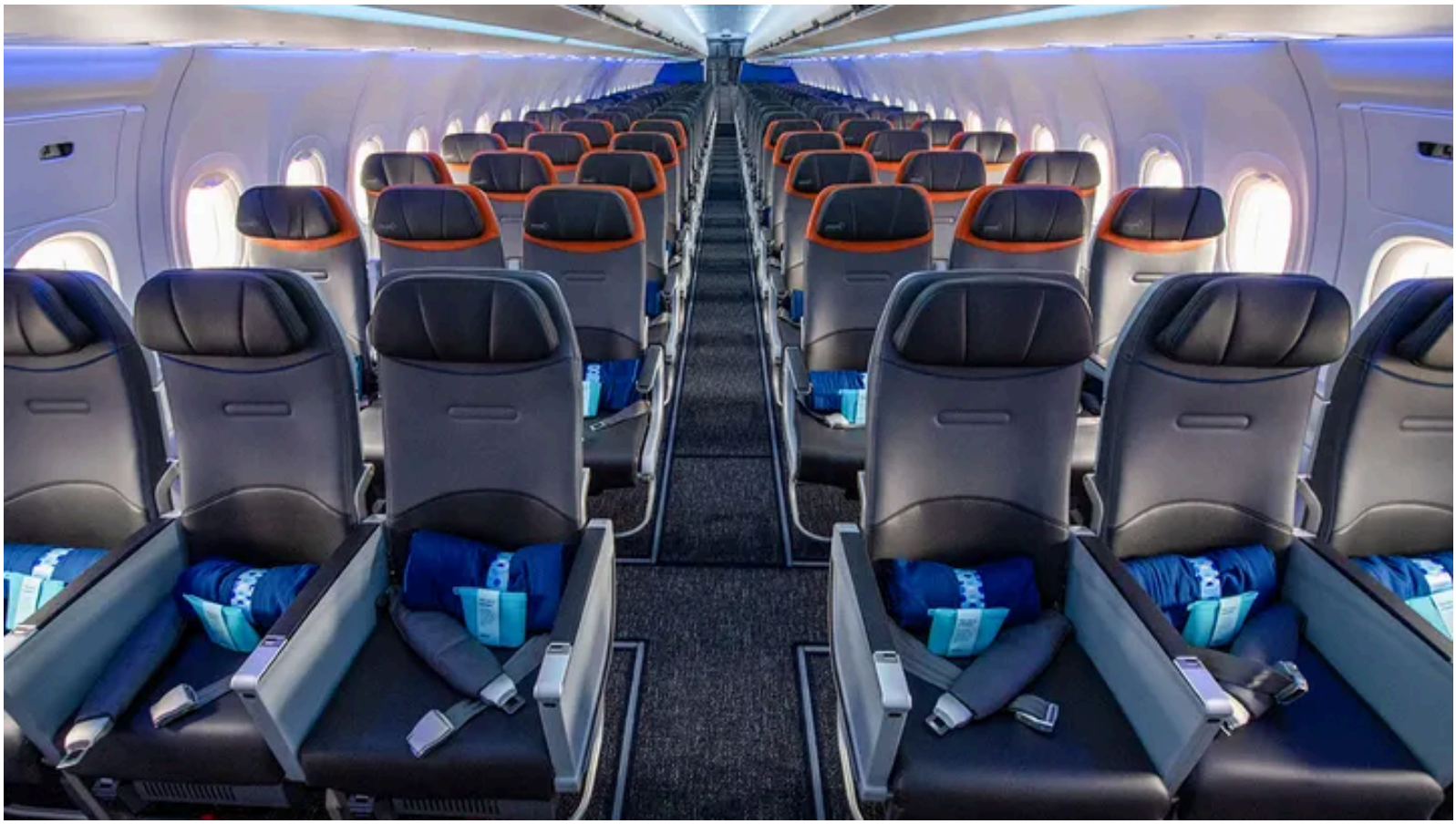
Airlines have long used dynamic pricing, which changes fares based on demand. The key question here is whether personal data plays a role in that calculation.

How AI is changing airline pricing behind the scenes

Many carriers now rely on artificial intelligence to analyze booking patterns, predict demand shifts and adjust fares in real time. We recently reported on this shift, showing how AI is reshaping the way travelers book flights and how prices are set across the industry. These systems can process large amounts of data at once,

including route demand, seasonal trends and competitor pricing.

While airlines say this improves efficiency, it can also make pricing feel less predictable to the average traveler. That is what makes the current lawsuit stand out. It raises the question of whether AI-driven pricing could go a step further by factoring in more detailed data about how people search and book, something airlines like JetBlue say they do not use for individual pricing.



Travelers often see prices change between searches, but the reasons are not always clear. (Chris J. Ratcliffe/Bloomberg via Getty Images)

JetBlue's viral response and why it matters

300,000 CHROME USERS HIT BY FAKE AI EXTENSIONS

Part of the lawsuit points to a social media exchange that quickly drew attention. A customer posted about a $230 jump in ticket price after checking a flight the day before while trying to book travel for a funeral.

In response, JetBlue suggested clearing cookies or using an incognito window. The comment was later deleted. According to the lawsuit, that response appeared to acknowledge that browsing behavior could influence pricing.

JetBlue disputes that interpretation. The airline said the reply came from a customer service employee and was a mistake. It also stated that clearing cookies or using private browsing would not change the fares available for purchase.

Even so, the exchange struck a nerve. For many travelers, it reinforced a long-standing suspicion that repeated searches or personal data might affect what they pay, even as airlines deny using that information for pricing.

Why airline ticket prices change so fast

Before assuming the worst, it helps to understand how airline pricing works today. Airlines use complex systems that adjust fares constantly. Prices can change within minutes based on demand, available seats, route popularity and competitor pricing.

If a flight starts filling up, the price usually rises. That means a price jump after you return to a search does not automatically point to tracking. It could simply reflect someone else booking a seat or increased demand.

Still, the lawsuit raises a valid concern about transparency. Travelers rarely know what factors are driving the price they see.

What this means to you

JetBlue says it does not tailor prices based on your digital footprint. According to the airline, you are not paying more because you searched twice or used a specific device. Instead, fares shift based on broader factors like seat availability, timing and demand on a route.

That said, prices can still feel unpredictable. Comparing options across platforms remains one of the best ways to avoid overpaying. Acting quickly when you find a fare you like can also make a difference, especially on popular routes.

If you are concerned about tracking, simple steps like using private browsing or switching devices may help limit how much of your activity is visible during repeated searches.

Some travelers also use a VPN to mask their location. While airlines like JetBlue say pricing does not depend on personal data like IP address or browsing history, a VPN can still add a layer of privacy by reducing how much information is shared during the booking process.

For the best VPN software, see my expert review of the best VPNs for browsing the web privately on your Windows, Mac, Android and iOS devices at CyberGuy.com

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JetBlue denies using personal data or browsing history to set individual ticket prices. (Greg Lovett/Palm Beach Post)

Kurt's key takeaways

If you have ever felt like flight prices change in ways that do not quite make sense, you are not alone. This lawsuit taps into a bigger question about how much companies know about us and how that information gets used. Airlines like JetBlue say personal data isn't part of pricing. Still, the way prices change can feel confusing and unpredictable. For now, the best move is to compare prices, take your time and do not assume the first fare you see is the best one.

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Kurt "CyberGuy" Knutsson is an award-winning tech journalist who has a deep love of technology, gear and gadgets that make life better with his contributions for Fox News & FOX Business beginning mornings on "FOX & Friends." Got a tech question? Get Kurt's free CyberGuy Newsletter, share your voice, a story idea or comment at CyberGuy.com.

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